Showing contexts for: **divorce petition** in Dhananjay Rathi vs Ruchika Rathi on 13 April, 2026

Context size: Small | Current | Large | Larger

Husband in favor of their daughter.

4.8 Both the parties further agreed to put an end to all the disputes between them and their family members, and additionally both the parties also agreed to refrain from instituting any case (civil or criminal) against each other or their family members.

5 Thereafter, on 04.07.2024, the **Divorce petition** bearing H.M.A. No. 235/2023 filed under Sections 13(1)(i-a) & 13(1)(i) (ia) of the Act was withdrawn by the Appellant-Husband and furthermore, a **petition** for **Divorce** under Section 13-B(1) of the Act was jointly filed by the Appellant-Husband and the Respondent-Wife, which was registered as H.M.A. No. 1185/2024, in the Court of Principal Judge, Family Court, Saket Court House, Delhi. Both the parties therein signed an Affidavit of Undertaking dated 03.07.2024, agreeing to comply with the terms of the Settlement Agreement. 6 Thereafter, the Court of Principal Judge, Family Court, Saket Court House, Delhi, vide order dated 14.08.2024, allowed the First Motion of the **petition** filed under Section 13B(1) of the Act, in view of the settlement arrived at between the parties. In compliance with the terms of the Settlement Agreement, the Appellant-Husband paid ₹75,00,000/- as first installment of the final settlement amount along with a sum of ₹14,00,000/- for purchase of the car. The Appellant- Husband has also returned the Jewellery Items as described in APPENDIX A to P to the Respondent-Wife. At the same time, the Respondent-Wife, in compliance with her obligations under the Settlement Agreement, transferred a sum of ₹2,52,38,794/- to the Appellant-Husband. 7 Subsequently, the Respondent-Wife withdrew her consent for

the mutual **divorce** and in response, the Appellant-Husband filed a Contempt **Petition** No. 07/2025 before the Principal Judge, Family Court, South District, Saket District Court, New Delhi. Later, a complaint bearing DV Complaint No. 3186 of 2025, was filed, before the Chief Metropolitan Magistrate, Saket Courts, Delhi, by the Respondent-Wife under Section 12 of the D.V. Act, against the Appellant-Husband and his mother on 16.10.2025 wherein, vide order dated 13.11.2025, summons were issued against them.

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23. In the present case, the marriage between the parties was solemnized on 19.02.2000 and they have two issues, a daughter aged 23 years and a son aged 20 years. On 30.01.2023, the Appellant-Husband filed a **Divorce Petition** on grounds of cruelty and adultery. In the said case, the concerned trial Court referred the parties for mediation at the mediation centre. During mediation, both the parties agreed to settle all their disputes and accordingly, a Settlement Agreement was entered between the parties, wherein, subject to the compliance with the terms thereof, the parties were to apply for **divorce** by mutual consent.

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49. A perusal of the dicta laid down by this Court in the above mentioned judgments and several others holding authority on the said law point makes it crystal clear that the Court while exercising its power under Article 142(1) for grant of **divorce** has to first conclude that there has been an irretrievable breakdown of marriage.

50. In the case at hand, the Appellant-Husband had first filed a **divorce petition** being H.M.A. No. 275/2023 under Sections 13(1)(i-a) & 13(1)(i)(a) of the Act, which was later withdrawn as per the terms of the Settlement Agreement. Further, in the **petition** for **divorce** by mutual consent filed on joint **petition** by both the parties, First Motion **Petition** has been allowed vide order dated 14.08.2024 and the Second Motion **Petition** has not been filed as yet.

Prevailing Position of the Settlement between the Parties

54. We notice that various terms and conditions have been set out in the Settlement Agreement and out of all such conditions, some have been already performed by the parties and the rest are yet to be completed. The following table indicates the terms of the Settlement Agreement between the parties and their status:

S. No.	Condition of the Settlement Agreement	Status of Completion
1.	Dissolution of Marriage by Mutual Consent: Parties agreed to dissolve their marriage under Section 13B(1) and 13B(2) of the Hindu Marriage Act by filing a joint **petition**.	Partially Completed: The First Motion was jointly filed and granted by the Family Court on 14.08.2024, However, the Second Motion was not signed as the Respondent-Wife withdrew her consent.
2.	Withdrawal of Fault-Based **Divorce Petition**: The Appellant-Husband undertook to withdraw his pending **Divorce Petition** (H.M.A. No. 275/2023) filed on grounds of adultery and cruelty.	Completed
3.	Payment of First Installment (Alimony): Appellant-Husband agreed to pay ₹75,00,000/- via Demand Draft towards full and final settlement at the time of recording the First Motion.	Completed
4.	Payment for Purchase of a New Car: Appellant-Husband agreed to pay an additional ₹14,00,000/- via Demand Draft for the purchase of a car at the time of the First Motion.	Completed
5.	Handing over of Jewellery (Appendix A to P): Appellant-Husband agreed to hand over specific jewellery items listed in Appendix A to P to the Respondent-Wife at the time of the First Motion.	Completed
6.	Execution of Gift Deed/Indemnity for Funds: Respondent-Wife agreed to execute a Gift Deed/forfeit her claim to ₹2,52,38,794/- to validate accounts reflected in the Appellant-Husband business.	Completed
7.	Relinquishment of Properties, Shares, and Policies: Respondent-Wife obligated to forfeit her rights and	

	execute transfer documents/gift deeds for properties (in Mascot & Neo Town), LIC/Bajaj Allianz policies, and company shares (Globe Capital, K.L. Rathi Steels) back to the Husband.	Pending/Not Complete
8.	Investment in PPF Account & Handover of Passbook: A Sum of ₹4,77,129/- has been invested in the PPF Account No. 152900PPF00000031787 under the name of the Respondent-Wife. The Appellant-Husband was required to hand over the PPF passbook to the Wife at the time of recording the Second Motion	Pending/Not Complete
9.	Payment of Second Installment (Alimony): Appellant-Husband agreed to pay the remaining balance of ₹70,22,871/- via Demand Draft at the time of recording the Second Motion.	Pending/Not Completed
10.	Bar on Future Litigation: Both parties undertook that neither they nor their family members would institute any civil or criminal proceedings against each other regarding the matrimonial discord in the future.	Breached/Not Completed

DIRECTIONS